

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF INDIANA**

ANDREW S. WHITE,	)	
	)	
Movant,	)	
vs.	)	1:08-cv-107-WTL-MJD
	)	
UNITED STATES OF AMERICA.	)	

Entry Discussing Motion to Reconsider

This cause is before the court on the movant's motion to reconsider. Given the timing of the motion to reconsider relative to the entry of final judgment on September 27, 2012, and given the arguments set forth in such motion, the motion is treated as a motion pursuant to Rule 59(e) of the *Federal Rules of Civil Procedure*. See *Borrero v. City of Chicago*, 456 F.3d 698, 701-02 (7th Cir. 2006) (explaining that whether a motion filed within the time frame contemplated by Rule 59(e) should be analyzed under Rule 59(e) or Rule 60(b) of the *Federal Rules of Civil Procedure* depends on the *substance* of the motion, not on the timing or label affixed to it).

The purpose of a motion to alter or amend judgment under Rule 59(e) is to have the court reconsider matters "properly encompassed in a decision on the merits." *Osterneck v. Ernst and Whinney*, 489 U.S. 169, 174 (1988). Rule 59(e) "authorizes relief when a moving party 'clearly establish[es] either a manifest error of law or fact' or 'present[s] newly discovered evidence.'" *Souter v. International Union*, 993 F.2d 595, 599 (7th Cir. 1993) (quoting *Federal Deposit Ins. Corp. v. Meyer*, 781 F.2d 1260, 1268 (7th Cir. 1986)).

The movant argues that the court failed to address two arguments in his motion pursuant to 28 U.S.C. § 2255: that his counsel was ineffective for failing to object to the parole search of his residence and that the court did not interpret the "anti-preemption provision" of the Federal Gun Control Act, 18 U.S.C. ' 927. A condition of White's probation allowed unannounced searches of his living quarters by law enforcement and/or probation officers. *United States v. White*, 368 F.3d 911, 913 (7th Cir. 2004), *cert. granted, judgment vacated*, 543 U.S. 1105 (2005).

While the court did not specifically address this provision of the law, the court did address the Federal Gun Control Act and found that Indiana's gun licensing laws did not affect enforcement of this law. *See United States v. Skoien*, 614 F.3d 638 (7th Cir. 2010)(*en banc*)(federal firearms prohibitions in section 922(g) are constitutional, even when as applied to persons convicted of misdemeanors).

The court's consideration of the § 2255 action was plenary. There was no meritorious claim asserted and the court finds none suggested by the motion to reconsider. There was in this case no manifest error of law or fact. The court did not misapprehend White's claims, nor did it misapply the law to those claims. Accordingly, the post-judgment motion to reconsider, treated as a motion to alter or amend judgment [71], is **denied**.

IT IS SO ORDERED.

Date: 12/06/2012

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Hon. William T. Lawrence, Judge
United States District Court
Southern District of Indiana

WASHINGTON, D.C. - This evening, Congressman Rob Wittman released the following statement regarding the President's decision on the way ahead in Afghanistan.

"I'm pleased that the President has come to a decision on the future strategy of our forces in Afghanistan and I fully support the deployment of additional troops and resources to aid in the fight against extremists. However, I am concerned with the mention of any sort of hard and fast time table. This simply sends the wrong message to the civilian population and provides a time clock for al-Qaeda and the Taliban to wait for our departure. We need to remember that the reason we went to Afghanistan was to eliminate al-Qaeda and provide freedom to an oppressed nation, and we should not leave until that job is finished. I have full faith and confidence in our military leadership and our troops that they will successfully complete this mission and I call on the President, Congress, and our Allies to provide them the tools to get the job done."

Congressman Rob Wittman represents the First District of Virginia. He was elected to his first full term in November 2008 and serves on the Natural Resources Committee and the Armed Services Committee where he is the Ranking Member of the Oversight and Investigations Subcommittee.